

M/s Laxmi Oil Mill v. Awdhesh Kumar Shukla, Executive Engineer

High Court of Judicature at Allahabad · Single Judge · 11 April 2018 · Contempt Application (Civil) No. 1342 of 2018 · **Contempt adjourned and passed over; clause 6.5(b) compliance not shown.**

HEADNOTE

In a civil contempt application over a disputed electricity bill of Rs.1,53,502, the High Court adjourned the matter after counsel could not satisfy it that clause 6.5(b) of the U.P. Electricity Supply Code, 2005 had been complied with, granted further time to study the Code, and later passed the listing over on counsel's illness slip. No finding of contempt and no merits disposal.

FACTUAL SUMMARY

M/s Laxmi Oil Mill brought a civil contempt application against Executive Engineer Awdhesh Kumar Shukla over a disputed electricity bill of Rs.1,53,502. On 15 March 2018 the Court adjourned the matter so that applicant's counsel could study the U.P. Electricity Supply Code, 2005. On 21 March 2018 counsel still could not show compliance with clause 6.5(b). Further time was granted. On 11 April 2018 the case was passed over on counsel's illness slip.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

clause 6.5(b) compliance on disputed bill

HOLDING

On a contempt listing arising from a disputed bill of Rs.1,53,502, the Court recorded that counsel was unable to satisfy it that clause 6.5(b) of the U.P. Electricity Supply Code, 2005 had been complied with, granted further time to study the Code, and later passed the matter over on an illness slip, without deciding contempt or the bill. ¶ 2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE OPPOSITE PARTY WAS IN CONTEMPT OF ANY EARLIER DIRECTION

The application was only adjourned and then passed over; no rule issued and no finding of contempt. ¶ 1-3

NOT DECIDED — WHETHER CLAUSE 6.5(B) HAD IN FACT BEEN COMPLIED WITH

The Court recorded that counsel had not satisfied it on compliance, but granted further time rather than deciding the point. ¶ 2